

FEDERAL MARITIME COMMISSION

USL AUTO EXPORTING INC.,

COMPLAINANT,

v.

Docket No. 23-13

EASY SHIPPING CORPORATION,

RESPONDENT.

**COMPLAINANT'S STATEMENT OF MATERIAL FACTS AS TO WHICH
THERE IS NO GENUINE DISPUTE**

TO THE HONORABLE Alex M. Chintella:

Pursuant to 46 C.F.R. § 502.70(a), Complainant, USL AUTO EXPORTING INC. (hereinafter "Complainant"), by and through the undersigned manager, respectfully submits this *Statement of Material Facts*.

In preparation for our argument, it is essential to outline the key material facts of this case that stand beyond the realm of genuine dispute. These facts, which will be discussed in detail in the forthcoming argument, establish the foundation of the Complainant's position and substantiate the motion for summary judgment. The undisputed facts are as follows:

	Fact	Source
1.	In its Answer, Respondent confirmed via Exhibit A that it received an email from Khalid Arwini identifying the vehicle as a 2005 Toyota T	(Ex. A, CX_11)
2.	Respondent admitted that they submitted the AES ITN with U.S. Customs using the Electronic Export Information	(Answer ¶ 9; Ex. A, CX_4)

3.	Respondent's in-house Bill of Lading, provided as Exhibit F, contained the AES ITN and was sent to Complainant for title validation with U.S. Customs, listing the vehicle as a 2005 Toyota Tundra.	(Ex. A, CX_27)
4.	In Exhibit G, Respondent filed with U.S. Customs the AES ITN online, indicating the vehicle as a 2005 TOYOTA Tundra.	(Ex. A, CX_30)
5.	Respondent admitted that they received the titles from Complainant.	(Answer ¶ 7; Ex. A, CX_4)
6.	Exhibit E from Respondent presented vehicle titles, which identified the vehicle as a 2005 Toyota Tundra.	(Ex. A, CX_23)
7.	Respondent's defense by general denials and reliance on disclaimers.	(Answer ¶ 8; Ex. A, CX_4)
8.	In Exhibit K, Respondent shows communication from Respondent with CMA CGM S.A., stating the misdeclaration of the shipment and the resulting return of the container.	(Ex. A, CX_44)
9.	Respondent admitted his knowledge of the container was to be returned.	(Answer ¶ 14; Ex. A, CX_5)
10.	Complainant, as evidenced in the emails with CMA CGM, received the draft of the original bill of lading identifying the vehicle as a 2017 TOYOTA 4Runner.	(Ex. F, CX_89)
11.	Respondent in Exhibit M provided an email, dated July 6, 2024, that was sent from Complainant notifying them that the container had arrived at Savannah and Respondent should work on pulling out the container.	(Ex. A, CX_49)
12.	Respondent had only partially paid invoice NAOB0367804, resulting in a deficit of \$310.52.	(Ex. K, CX_109)
13.	Respondent admitted that they sent the in-house bill of lading to Complainant.	(Answer ¶ 8; Ex. A, CX_4)
14.	Respondent admitted that Complainant notified them that the container had arrived at Savannah and they should work on clearance of the container.	(Answer ¶ 15; Ex. A, CX_5)

15.	Respondent admitted that Complainant communicated with CMA CGM S.A. to get the container released.	(Answer ¶ 17; Ex. A, CX_5)
16.	Respondent admitted that Complainant requested the return bill of lading to work on the clearance.	(Answer ¶ 16; Ex. A, CX_5)
17.	Respondent provided Complainant's email requesting the return bill of lading to work on the clearance.	(Ex. A, CX_51)
18.	Respondent accused Complainant of fraudulent corresponding.	(Answer ¶ 19; Ex. A, CX_6)
19.	Communications from CMA CGM S.A., as referenced in Respondent's Exhibit H (Ex. A, CX_36), contain no indication that the container was returned on account of a 2012 Yamaha.	(Ex. A, CX_36)
20.	Respondent's claim in Answer ¶ 13 that Complainant loaded a Tundra instead of a TOYOTA 4Runner misrepresents the facts.	(Answer ¶ 13; Ex. A, CX_5)
21.	Respondent in Answer ¶ 19, falsely accuses Complainant of fraudulently contacting CMA CGM S.A.	(Answer ¶ 19; Ex. A, CX_6)
22.	Through Exhibit S, Respondent sent an email on December 20, 2023, to CMA CGM S.A., claiming Khalid Arwini impersonated an employee.	(Ex. A, CX_67)

DATED: March 25, 2024,

Respectfully submitted,
USL AUTO EXPORTING INC.,
By: s/ANIS HOUSSEIN
ANIS HOUSSEIN
general.manager@uslautoexporting.com
84 Kensington Dr., PISCATAWAY,
New Jersey 08854
Tel.: (862) 338-0889
Vice President for COMPLAINANT

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on the 25th day of March 2024, a true and correct copy of the foregoing COMPLAINANT'S STATEMENT OF MATERIAL FACTS was served via electronic mail on:

EASY SHIPPING CORPORATION
(fracati@rafatilegal.com)

Anis Houssein

Anis Houssein

Vice President for COMPLAINANT
USL AUTO EXPORTING INC.,